

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Browne	Team: Team # 6	CCRB Case #: 201309413	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/01/2013 5:00 PM	Location of Incident: Outside of § 87(2)(b)	Precinct: 73	18 Mo. SOL 4/1/2015	EO SOL 4/1/2015	
Date/Time CV Reported Wed, 10/02/2013 2:04 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/08/2013 12:41 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Andrew Kamna	24865	943423	073 PCT
2. POM George Allen	06387	944517	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Damon McMullen	01315	933986	073 PCT
2. POM Michael Shreve	11336	940738	073 PCT
3. SGT Danielle Roventini	02499	933298	073 PCT
4. POM Stephen Kuo	23023	933903	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Andrew Kamna	Force: PO Andrew Kamna hit § 87(2)(b) against vehicles.	§ 87(2)(g), § 87(4-b)
B.POM Andrew Kamna	Off. Language: PO Andrew Kamna made remarks to § 87(2)(b) based upon race.	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On October 2, 2013, § 87(2)(b) called IAB to report this incident. On October 8, 2013, IAB forwarded the complaint to the CCRB under IAB log #2013-42272.

At approximately 5:00 p.m. on October 1, 2013, § 87(2)(b) was detained by the police while his car was being repossessed outside of § 87(2)(b) in Brooklyn, resulting in the following allegations:

- **Allegation A—Force: PO Andrew Kamna hit § 87(2)(b) against vehicles.**
- **Allegation B—Offensive Language: PO Andrew Kamna made remarks to § 87(2)(b) based upon race.**

§ 87(2)(g)

- **§ 87(2)(g), § 87(4-b)**

This case was originally assigned to Investigator Michael Gsovski. However, due to Investigator Gsovski's departure from the CCRB, the case was reassigned to Investigator Patrick Browne on March 3, 2014. Because § 87(2)(b) filed a notice of claim regarding this incident, it was determined that his case was ineligible for mediation and was, therefore, investigated.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- At the time of his CCRB interview, § 87(2)(b) was a § 87(2)(b) black male who stood 6'2", weighed 165 pounds, with black hair and brown eyes.

● § 87(2)(b)

Statements to Medical Personnel

Upon seeing an emergency medical technician at § 87(2)(b) on § 87(2)(b), § 87(2)(b) stated that his head hurt, he was dizzy, and that he had vomited several hours ago after hitting his head while exiting and entering a police vehicle. Upon admission to a hospital at § 87(2)(b), he stated that he had been arrested and that he hit his head on an NYPD car doorway while entering the vehicle, causing him head pain, blurred vision, and vomiting that began four hours prior.

IAB Intake Statement

§ 87(2)(b) filed his complaint with IAB on October 2, 2013 (encl. 4A-C). He stated that PO Kamna instructed him to exit his vehicle, but when he began to comply, PO Kamna grabbed him and handcuffed him. He then forcibly pushed § 87(2)(b) into the police vehicle, causing him to hit his head on an unspecified part of the car. As a result, § 87(2)(b) had a bad headache. Additionally, § 87(2)(b) also alleged that PO Kamna stated, “Black people want to buy things they can’t afford,” and maintained that he had video and audio of PO Kamna calling § 87(2)(b) a “nigger.”

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on October 22, 2013 (encl. 6A-G). At approximately 5:00 p.m. on October 1, 2013, § 87(2)(b) and his brother, § 87(2)(b) were inside the home of his father, § 87(2)(b) located at § 87(2)(b) in Brooklyn, when they heard a banging noise outside. § 87(2)(b) and § 87(2)(b) exited the house and discovered three repo men, § 87(2)(b) and § 87(2)(b) attempting to repossess his orange 1999 Porsche 911.

Although the car had been fully parked inside the garage with the door closed and locked, the repo men had opened the door and had manually rolled it halfway out of the garage so that it was partially on the sidewalk. After arguing with the repo men for several minutes, § 87(2)(b) sat down in the driver’s seat of the car and called the police. While he waited for the police to arrive, the repo men pushed the car further out of the garage so that it was partially on the sidewalk and partially in the street.

Approximately ten to fifteen minutes later, two police officers, identified through investigation as Sgt. Danielle Roventini and PO Stephen Kuo of the 73rd Precinct, arrived, and all parties explained their sides of the story. Shortly thereafter, another officer, identified through investigation as PO Andrew Kamna also of the 73rd Precinct, arrived and told § 87(2)(b) that if he did not get out of the vehicle, he would be arrested. § 87(2)(b) stated that he did not have to get out of the car because it was on his property and that the repo men had just broken into their garage.

PO Kamna then grabbed § 87(2)(b) by the arm and pulled him out of his car with moderate force, causing § 87(2)(b) to hit the top left part of his head on the driver’s side door frame. PO Kamna then handcuffed § 87(2)(b) during which time he was fully compliant. PO Kamna frisked and searched § 87(2)(b) removing the car keys from his pocket and handing them to § 87(2)(b).

PO Kamna then escorted § 87(2)(b) to the police vehicle and placed him inside. During that process, PO Kamna grabbed § 87(2)(b)’s head and pushed him horizontally toward the back seat, causing his head to collide with an unspecified part of the vehicle. § 87(2)(b) could not describe exactly where or how his head hit the vehicle, stating that the force of the impact disoriented him, making him feel dizzy and blurring his vision.

While § 87(2)(b) remained seated in the police vehicle, the repo men confiscated his car. PO Kamna then escorted § 87(2)(b) out of the vehicle and stated, “I don’t understand why black people buy things they can’t afford.” § 87(2)(b) stated that he had video of PO Kamna making that statement, though the comment was not audible and he did not provide this footage to the CCRB. After his handcuffs were removed, § 87(2)(b) returned to his house

without being issued any documents. PO Kamna never told § 87(2)(b) why he was being released. § 87(2)(b) did not allege that PO Kamna used the word “nigger.”

After sitting down for half an hour, § 87(2)(b) threw up. Because he was disoriented from the incident, he went to § 87(2)(b) sometime in the early morning of § 87(2)(b), and was diagnosed with a concussion. § 87(2)(b) stated that there would not have been any visible bruising to his head as a result of the impact. His condition improved, but he still felt woozy at the time of his interview.

Witness: § 87(2)(b)

- *At the time of his interview, § 87(2)(b) was a black male who stood 6'3" tall. He refused to provide his date of birth and provided no other pedigree or employment information.*

CCRB Statement

§ 87(2)(b) stated that he was unable to provide a sworn statement at the CCRB because he was leaving New York City for an extended period of time. As such, he provided a statement over the phone on May 6, 2014 (encl. 10A-B). § 87(2)(g)

Outside, however, three repo men were attempting to use a screwdriver or similar tool to break into the garage, which was locked at the time. Stored inside the garage was § 87(2)(b)'s Porsche, though the car's battery was dead. After several minutes of arguing with the repo men, § 87(2)(b) called the police for assistance. While they waited, § 87(2)(b) opened the garage door himself and sat down in the driver's seat of the vehicle.

After approximately ten minutes, two officers, PO Kamna and his partner, identified through investigation as PO George Allen of the 73rd Precinct, arrived. The officers first spoke to the repo men, who explained that they had authorization to take the vehicle. The officers then approached § 87(2)(b) who was still seated in the driver's seat of the Porsche.

PO Kamna told § 87(2)(b) that he needed to exit the vehicle and allow the repo men to take it. § 87(2)(b) tried to explain his side of the story, but PO Kamna again instructed him to exit the car. § 87(2)(b) requested that a supervisor who was better versed in the legal technicalities of the situation be called to the scene. As a result, Sgt. Roventini and PO Kuo responded, followed by two additional officers, identified through investigation as Sgt. Damon McMullen and PO Michael Shreve of the 73rd Precinct. Both Sgt. Roventini and Sgt. McMullen similarly told § 87(2)(b) that he had to exit the vehicle and give up the car. § 87(2)(b) repeatedly refused to do so.

PO Kamna then removed § 87(2)(b) from the driver's seat of his car by grabbing his shoulders and pulling him up out of the vehicle. § 87(2)(b) made no mention of § 87(2)(b) hitting his head on his car while being removed from it. PO Kamna pulled his hands behind his back and pushed his upper body down so that his chest and one side of his face made contact with the hood of the vehicle. § 87(2)(b) was fully compliant during this process.

Once the handcuffs were secured, PO Kamna frisked and searched § 87(2)(b) removing his belongings and handing a set of car keys to § 87(2)(b). PO Kamna then escorted § 87(2)(b) to his police car and forcefully pushed him into the back seat, though he could not describe exactly how this was done. § 87(2)(b) told § 87(2)(b) that he had hit his

head against the police vehicle as a result of being pushed inside, but § 87(2)(b) did not see this.

§ 87(2)(b) and § 87(2)(b) were then instructed to leave, so they reentered the house. Over the course of the next five minutes, § 87(2)(b) watched from the window as the repo men confiscated § 87(2)(b)'s car. After several more minutes, § 87(2)(b) was released from the police car and his handcuffs were removed. Once the officers were gone, § 87(2)(b) and § 87(2)(b) exited the house and saw that the repo men were stuck several blocks down the street. Joining § 87(2)(b) all three of them followed and told the repo men that they were damaging the car by pushing it with another car's bumper. The repo men made several phone calls and a tow truck finally arrived to properly haul the car away.

§ 87(2)(b) did not initially acknowledge any additional interaction with the police. When asked if a different set of officers ever responded, he first stated that none had, but quickly altered his statement and maintained that either he or § 87(2)(b) did call the police when they were waiting for the tow truck in order to report that the repo men were improperly towing the car.

When asked if § 87(2)(b) ever told him of any pain following the incident, § 87(2)(b) stated that he complained of pain in his wrists, neck, feet, and back. § 87(2)(b) did not make any mention of § 87(2)(b) reporting head pain. When asked if § 87(2)(b) experienced any vomiting or blurred vision that same day, § 87(2)(b) stated that he only knew of the wrist, foot, neck, and back pain.

§ 87(2)(b) initially made no mention of any officer making statements to § 87(2)(b) based on his race. However, when asked if any officer made such comments, he stated that the officer who pulled him out of the vehicle did use racial slurs, specifically stating, "Niggers can't afford cars they shouldn't pay for it," or something to that effect. § 87(2)(b) maintained that § 87(2)(b) made no racial comments to either the officers or the repo men. Throughout the entire line of questioning regarding racial comments, § 87(2)(b) stuttered and hesitated.

Witness: § 87(2)(b)

- At the time of his interview, § 87(2)(b) was a § 87(2)(b) Hispanic male. No other pedigree information is known.
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed over the phone on April 15, 2014 (encl. 7A-B). At approximately 5:00 p.m. on October 1, 2013, § 87(2)(b) an authorized repo man, and his two employees, § 87(2)(b) and § 87(2)(b) went to § 87(2)(b) in Brooklyn in order to repossess a 1999 orange Porsche due to late payments by the owner, § 87(2)(b).

When the three men arrived, they found the vehicle parked halfway inside the garage and halfway on the sidewalk with its doors unlocked. Because the car's battery was dead, § 87(2)(b) rolled it the rest of the way out of the garage so that half of it was on the sidewalk and the other half was in the street. § 87(2)(b) then went to the adjacent house door and knocked, hoping that the owner would voluntarily surrender the keys. When § 87(2)(b) answered and saw the car, he became extremely irate, threatening and cursing at § 87(2)(b) for the next several minutes. § 87(2)(b) and § 87(2)(b) also exited the house.

Shortly thereafter, § 87(2)(b) went back into his apartment. Fearing that he might have gone to retrieve a weapon, § 87(2)(b) called the police, and at the same time spotted Sgt. Roventini and PO Kuo driving nearby. As such, he ran to alert them of the situation. When they responded to the scene, more arguing between the officers and § 87(2)(b) ensued, during which time § 87(2)(b) returned from the house and sat in the driver's seat of his car.

Sgt. Roventini stated that § 87(2)(b) had the proper paperwork to repossess the car and ordered § 87(2)(b) to step out. § 87(2)(b) refused to do so. Over the course of the next several minutes, Sgt. Roventini and PO Kamna issued at least ten commands for him to exit and warned him that if he did not comply, he would be arrested for obstruction of governmental administration. § 87(2)(b) remained seated in the vehicle and repeatedly stated that he wanted them to arrest him so that he could file a lawsuit against the Police Department.

Eventually, PO Kamna issued one last command for § 87(2)(b) to exit the vehicle, with which he again refused to comply. PO Kamna then physically grabbed him by the arm and pulled him out of the vehicle. At no point did § 87(2)(b) hit his head or any other body part against his car during this process. The officer then instructed him to turn around and place his hands behind his back, which § 87(2)(b) did willingly.

After § 87(2)(b) was handcuffed, the officer frisked and searched him, removing several objects. Among the items was a set of car keys, which the officer handed to § 87(2)(b). The officer then escorted § 87(2)(b) to the police car and sat him inside. At no point during this process did § 87(2)(b)'s head make contact with the police car.

§ 87(2)(b) and § 87(2)(b) pushed the car about a block down the street, at which time § 87(2)(b) was un-handcuffed and released. Although he went back inside his house, he returned with § 87(2)(b) and Qunicy § 87(2)(b) once the officers departed and chased § 87(2)(b) several blocks down the street. When they caught up, § 87(2)(b) stood in front of the car and he, § 87(2)(b) and § 87(2)(b) threatened to fight them. § 87(2)(b) immediately called the police again. Two unidentified officers from the 83rd Precinct, into which the group had crossed, arrived and eventually settled the matter.

At no point during the incident did § 87(2)(b) hear any officer call § 87(2)(b) a "nigger" or state, "I don't understand why black people buy things they can't afford." The officers did not use any disrespectful language while speaking to § 87(2)(b). However, § 87(2)(b) and the other individuals with him repeatedly called § 87(2)(b) "nigga" and "spic." Additionally, § 87(2)(b) asked the officers if they did not think he could afford the car because he was black.

Witness: § 87(2)(b)

- *At the time of his interview, § 87(2)(b) was a § 87(2)(b) Hispanic male. No other pedigree information is known.*
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed over the phone on April 29, 2014 (encl. 8A-C). § 87(2)(g) he corroborated that the car was parked halfway on the sidewalk and halfway in the street when § 87(2)(b) sat inside and refused to exit; that

§ 87(2)(b) refused numerous police orders to exit the car; that § 87(2)(b) did not hit his head on either his car or the police car when being removed and placed inside, respectively; that he did not hear any officer call § 87(2)(b) a “nigger” or tell him, “I don’t understand why black people buy things they can’t afford;” and that after the police left, § 87(2)(b) and § 87(2)(b) pursued the repo men several blocks away. § 87(2)(b) also added that throughout the incident, § 87(2)(b) and § 87(2)(b) repeatedly called him and the other repo men “fucking spics” and “fucking niggers,” among other names.

Witness: § 87(2)(b)

- *At the time of his interview, § 87(2)(b) was a § 87(2)(b) Hispanic male who stood 5’9”, weighed 165 pounds, and had black hair and brown eyes.*

- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed over the phone in Spanish on May 8, 2014 (encl. 9A-D). § 87(2)(b) he corroborated that the car was parked halfway on the sidewalk and halfway in the street when § 87(2)(b) sat inside and refused to exit; that § 87(2)(b) refused numerous police orders to step out of the car; that § 87(2)(b) did not hit his head against either his vehicle or the police vehicle while being removed or placed inside, respectively; that he did not hear any officer ever call § 87(2)(b) a “nigger” or state to him, “I don’t understand why black people buy things they can’t afford;” and that after the police left, § 87(2)(b) and § 87(2)(b) pursued them down the street and a different set of officers arrived to finally settle the matter. § 87(2)(b) maintained that § 87(2)(b) repeatedly cursed and spoke disrespectfully to both the repo men and the officers throughout the incident.

Attempts to Obtain Video Footage and Contact § 87(2)(b)

§ 87(2)(b) reported that § 87(2)(b) both witnessed the incident as well as recorded video footage of PO Kamna calling him a “nigger.” During phone calls on October 9, 2013 and October 16, 2013, respectively, in emails sent on October 9, 2013 and October 21, 2013, respectively, and a letter mailed on April 2, 2014, § 87(2)(b) was asked to provide the photographs and video footage described. On October 25, 2013, § 87(2)(b) emailed the CCRB stating that he had attached additional photographs of the incident. However, no attachments were included. A reply email was sent the same day notifying him that no files were received and asking for them to be resent, but § 87(2)(b) did not respond to that request. Furthermore, during his in-person interview on October 23, 2013, § 87(2)(b) failed to provide any such materials, stating that § 87(2)(b) had them.

On January 28, 2014, § 87(2)(b) was scheduled to appear for an in-person interview at the CCRB on February 4, 2014 and was sent a reminder email confirming the details. § 87(2)(b) failed to appear for that interview. A missed appointment letter—which has not been returned to the CCRB via the United States Postal Service—was mailed to § 87(2)(b) on February 7, 2014, and during a follow up phone call on February 10, 2014, he rescheduled his interview for February 19, 2014. Although he was again sent a reminder email with details of his appointment, § 87(2)(b) failed to appear for that interview as well. With each of the aforementioned communications, § 87(2)(b) was asked to provide any photographs or video footage related to the incident. However, as of the date of this report, § 87(2)(b) has not contacted the CCRB to provide

any such materials or to reschedule his interview. Therefore, the investigation was unable to obtain his statement.

NYPD Statements:

Subject Officer: PO ANDREW KAMNA

- *At the time of his interview, PO Kamna was a § 87(2)(b) old white male who stood 5'9", weighed 140 lbs., and had brown hair and brown eyes.*
- *On October 1, 2013, PO Kamna was assigned to patrol of sectors C, D, and F of the 73rd Precinct with PO George Allen. He worked from 3:00 p.m. to 11:35 p.m., was dressed in uniform, and was assigned to marked police sedan (#5058).*

Memo Book

PO Kamna recorded in his memo book (encl. 11A-C) that at 5:10 p.m., a crime was in progress (10-39) at § 87(2)(b) in regards to a repossession team needing help. A UF-250 was prepared for § 87(2)(b) (address: § 87(2)(b) DOB: § 87(2)(b) § 87(2)(b) disregarded several requests from the reporting officer to move away from the vehicle that was being repossessed. § 87(2)(b) was irate and uncooperative.

Stop and Frisk Report

PO Kamna completed a stop and frisk report for § 87(2)(b) (encl. 17A-D). The report indicated that § 87(2)(b) was stopped for obstruction of governmental administration after he failed to comply with a lawful order. The only force that PO Kamna recorded having used was handcuffing § 87(2)(b) after which he was frisked and searched.

CCRB Statement

PO Kamna was interviewed at the CCRB on April 11, 2014 (encl. 11D-F). At approximately 5:10 p.m. on October 1, 2013, PO Kamna and PO Allen were performing routine patrol of the 73rd Precinct when they received a radio run of a car repossession team in need of assistance at § 87(2)(b) in Brooklyn. When they arrived, § 87(2)(b) 2) and § 87(2)(b) were standing around § 87(2)(b)'s car, which was parked partially on the sidewalk and partially in the street. § 87(2)(b) was seated in the driver's seat of the car and was speaking to Sgt. Roventini and PO Kuo. PO Kamna approached and spoke to the officers, who explained the situation. PO Kamna then spoke to the repo men, who stated that they were authorized to repossess the car and that they had pushed it out of the garage.

Seeing that § 87(2)(b) was refusing to exit the driver's seat, PO Kamna approached and over the course of the next several minutes, issued at least five orders for him to step out of the vehicle. § 87(2)(b) was irate and refused to comply each time, even stating that the only way he would exit would be in handcuffs. PO Kamna determined that § 87(2)(b)'s refusal to exit a car which was parked on the sidewalk was blocking pedestrian traffic and was a penal code violation. After an additional two to three refusals to step out, PO Kamna decided to arrest § 87(2)(b) for obstruction of governmental administration and disorderly conduct, specifically failing to comply with a lawful order to disperse.

§ 87(2)(b) eventually complied and stepped out of the vehicle on his own. PO Kamna did not use any physical force to pull him from the vehicle. PO Kamna then turned § 87(2)(b) around and handcuffed him. § 87(2)(b) did not resist in any way during this process. At no point did § 87(2)(b) hit his head against any part of the car.

PO Kamna then escorted § 87(2)(b) to his police car. Before placing him in the back seat, PO Kamna frisked and searched his entire body in order to ensure his and PO Allen's safety. § 87(2)(b) did not resist while being placed into the police car and at no point hit his head against any part of the vehicle.

While § 87(2)(b) was in the police car, PO Kamna called for a supervisor to respond to the scene. Within a few minutes, Sgt. McMullen arrived and PO Kamna explained to him the situation. Presented with the facts, Sgt. McMullen determined that § 87(2)(b) should be released and told PO Kamna that it was not their duty to assist with vehicle repossessions.

PO Kamna then removed § 87(2)(b) from the police vehicle, though at no point did he hit his head on any part of the car while exiting. PO Kamna also prepared a UF-250 for him and departed the scene. At no point during the incident did PO Kamna call § 87(2)(b) a "nigger," state to him, "I don't understand why black people buy things they can't afford," or make any comments to him based on race.

Witness Officer: PO GEORGE ALLEN

- *At the time of his interview, PO Allen was a § 87(2)(b) black male who stood 5'9", weighed 185 lbs., and had black hair and brown eyes.*
- *On October 1, 2013, PO Allen worked the same tour and assignment as PO Kamna.*

Memo Book

PO Allen did not have any entries in his memo book (encl. 12A) regarding this incident. At 2:35 p.m., he began his patrol. At 10:35 p.m., he ended his tour.

CCRB Statement

PO Allen was interviewed at the CCRB on May 22, 2014 (encl. 12B-C). PO Allen had no recollection of this incident or any details from October 1, 2013. PO Allen was shown a photograph of PO Kamna handcuffing § 87(2)(b) at the time of the incident, a Google street photograph of the incident location, the roll call from the date of the incident indicating that PO Allen was partnered with PO Kamna and assigned to the same vehicle, an EVENT report outlining the incident, and the stop and frisk report completed by PO Kamna for § 87(2)(b).

However, PO Allen still did not recognize § 87(2)(b) or recall any details of the incident. Furthermore, PO Allen stated that, as a black man, he found it illogical to claim that PO Kamna called someone a "nigger" or state, "I don't understand why black people buy things they can't afford" while in his presence. He maintained that he has never heard PO Kamna make any such statements.

Witness Officer: SGT. DANIELLE ROVENTINI

- *At the time of her interview, Sgt. Roventini was a § 87(2)(b) white female who stood 5'4", weighed 120 lbs., and had brown hair and hazel eyes.*
- *On October 1, 2013, Sgt. Roventini was the election supervisor in the 73rd Precinct, working with PO Kuo. She worked from 1:50 p.m. to 11:47 p.m., was dressed in uniform, and was assigned to a marked police sedan (#4625).*

Memo Book

Sgt. Roventini recorded in her memo book (encl. 13A-C) that at 5:05 p.m., she received a pickup of a dispute (10-52) at § 87(2)(b) regarding a repossessed vehicle. One male was arrested by PO Kamna for obstruction of governmental administration. Upon further investigation, the male was released and the job was determined to be a civil matter referred to court. Sgt. McMullen responded to the scene.

CCRB Statement

Sgt. Roventini was interviewed at the CCRB on June 4, 2014 (encl. 13D-E). At approximately 5:00 p.m. on October 1, 2013, Sgt. Roventini and PO Kuo were driving along § 87(2)(b) in Brooklyn, headed to supervise an election site. When they reached § 87(2)(b) they saw a crowd of approximately five people gathered, engaged in a verbal dispute involving both civilians and officers, specifically PO Kamna and PO Allen. PO Kuo immediately stopped the vehicle, and both he and Sgt. Roventini approached.

At the time, § 87(2)(b) was seated in the driver's seat of his car, which was parked on the sidewalk perpendicular to the street. The vehicle was fully out of the garage but was obstructing all sidewalk traffic, forcing pedestrians to walk into the street in order to pass. § 87(2)(b) was loudly yelling and cursing at PO Kamna, who instructed him multiple times in a relatively calm manner to exit the vehicle because he could not leave it there. § 87(2)(b) repeatedly stated that he would not move or exit the car.

After briefly checking to see if the officers were okay, Sgt. Roventini spent approximately the next five minutes speaking to § 87(2)(b) who explained that the other civilians there were attempting to repossess the car, as well as to one of the repo men, who showed her the repossession order to prove that it was a valid operation. Meanwhile § 87(2)(b) continued to refuse to comply with any of PO Kamna's orders and remained seated in his car. At one point, PO Kamna told § 87(2)(b) that if he did not move the vehicle, he would be arrested for obstructing pedestrian traffic.

After numerous refusals to comply, PO Kamna then forcibly guided § 87(2)(b) out of the car by his arm, but at no point did § 87(2)(b) hit his head on any part of the car. PO Kamna then handcuffed § 87(2)(b) frisked him, and escorted him across the street to his police car. Sgt. Roventini did not recall seeing PO Kamna search § 87(2)(b).

Because she was still speaking to § 87(2)(b) at the time, Sgt. Roventini did not witness PO Kamna place § 87(2)(b) into the police vehicle. § 87(2)(b) seemed lucid and did not appear to have suffered any head injury. Sgt. Roventini did not hear PO Kamna call § 87(2)(b) a "nigger" or state, "I don't understand why black people buy things they can't afford."

After § 87(2)(b) was placed in the police car, Sgt. McMullen arrived at the scene, allowing Sgt. Roventini and PO Kuo to resume their scheduled election duties. When Sgt. Roventini departed, she believed that § 87(2)(b) was under arrest for disorderly conduct.

Witness Officer: PO STEPHEN KUO

- *At the time of his interview, PO Kuo was a § 87(2)(b) Asian male who stood 5'8", weighed 185 lbs., and had black hair and brown eyes.*
- *On October 1, 2013, PO Kuo worked the same tour and assignment as Sgt. Roventini.*

Memo Book

PO Kuo recorded in his memo book (enc. 14A-B) that at 5:00 p.m., he received a pickup of a dispute at § 87(2)(b) and § 87(2)(b). The incident was corrected as a non-crime (10-91) and was referred as a civil matter (10-95).

CCRB Statement

PO Kuo was interviewed at the CCRB on June 18, 2014 (encl. 14C-D). § 87(2)(g) However, instead of approaching the situation, PO Kuo remained ten to fifteen feet away from the scene in order prevent a crowd from forming. PO Kuo did not hear any conversation or become aware of the details of the situation other than that it involved the repossession of a vehicle. Although he saw § 87(2)(b) sitting in his car, he did not see him removed from it.

PO Kuo did witness § 87(2)(b) being handcuffed and escorted into a police car. § 87(2)(b) was fully compliant during these processes and at no point did he hit his head on the police car. PO Kuo did not hear PO Kamna ever call § 87(2)(b) a “nigger” or state, “I don’t understand why black people buy things they can’t afford.”

After approximately five minutes, Sgt. McMullen arrived at the scene and spoke to the officers, though PO Kuo did not hear any of these conversations. As the patrol supervisor, Sgt. McMullen took control of the situation while Sgt. Roventini and PO Kuo resumed their assigned duties.

Witness Officer: SGT. DAMON MCMULLEN

- *At the time of his interview, Sgt. McMullen was a § 87(2)(b) white male who stood 6’0”, weighed 260 lbs., and had brown hair and hazel eyes.*
- *On October 1, 2013, Sgt. McMullen was the patrol supervisor in the 73rd Precinct, working with PO Shreve. He worked from 2:50 p.m. to 11:47 p.m., was dressed in uniform, and was assigned to a marked police sedan (#5480).*

Memo Book

Sgt. McMullen recorded in his memo book (encl. 15A-C) that at 5:34 p.m., a crime was in progress (10-39) at § 87(2)(b). The job was corrected as a non-crime (10-91), referred to an outside agency (10-95), and a report was prepared (10-93Q).

CCRB Statement

Sgt. McMullen was interviewed at the CCRB on April 25, 2014 (encl. 15D-E). At approximately 5:00 p.m. on October 1, 2013, Sgt. McMullen and PO Shreve received notice over the radio of a crime in progress at § 87(2)(b). One of the sectors responded to the situation, but at approximately 5:30 p.m., a request for a supervisor at that location came over the radio, so Sgt. McMullen and PO Shreve went to the scene.

Upon arrival, Sgt. McMullen saw PO Kamna and another officer standing near his police car. He did not recall Sgt. Roventini or PO Kuo being on scene. At the time, § 87(2)(b) was seated in the back of PO Kamna’s police car, yelling that they had no right to arrest him.

Sgt. McMullen spoke to PO Kamna, who explained the dispute and reported that when a tow truck attempted to take the car, § 87(2)(b) entered the vehicle so as to prevent the tow

truck from doing so. PO Kamna reported that he requested numerous times for § 87(2)(b) to exit the vehicle, but § 87(2)(b) became loud and disorderly, refusing to comply. As such, PO Kamna removed § 87(2)(b) from the vehicle, handcuffed him, and placed him in the back of his police car until he could complete the investigation. PO Kamna stated that he confirmed that the repossession was valid, and that he intended to arrest § 87(2)(b) for disorderly conduct, specifically for compromising his own safety by refusing to exit a vehicle that was attached to a tow truck as well as preventing the tow truck from moving and, thereby, obstructing traffic. Sgt. McMullen did not speak to any civilians himself.

After hearing PO Kamna's narrative, Sgt. McMullen determined that, although § 87(2)(b) could have been arrested for disorderly conduct, he did not believe that it would remedy the situation. With a lack of any additional probable cause required to effect an arrest, Sgt. McMullen instructed PO Kamna to release § 87(2)(b) and prepare a stop and frisk report for him.

PO Kamna promptly followed Sgt. McMullen's instructions. Sgt. McMullen witnessed § 87(2)(b) step out of the police car on his own, and at no point did he hit his head on any part of the car. PO Kamna did not tell Sgt. McMullen that he used any physical force prior to Sgt. McMullen's arrival. Sgt. McMullen never heard PO Kamna state, "I don't understand why black people buy things they can't afford," call § 87(2)(b) a "nigger," or use any profanity while speaking to § 87(2)(b). Once § 87(2)(b) was un-handcuffed, Sgt. McMullen departed.

Officer Not Interviewed

§ 87(2)(g)

Medical Records

On March 21, 2014, § 87(2)(b) in Brooklyn provided medical records detailing the treatment § 87(2)(b) received following this incident. At § 87(2)(b) on § 87(2)(b) § 87(2)(b) called an ambulance and was transported to the § 87(2)(b) emergency room, where he was admitted at § 87(2)(b). The records do not indicate that he reported pain in his wrists, neck, or feet. At the time of his nurse triage, he still reported a headache and dizziness, but no longer suffered from nausea, vomiting, or altered vision.

§ 87(2)(b) was diagnosed with an acute head injury, a closed head injury without loss of consciousness, vomiting, and head pain. However, his head exhibited no abrasions, lacerations, or other marks; he was alert to person, place, time, and situation; he had no focal neurological deficit; and he had normal sensory function, normal motor function, normal speech, and normal coordination. He also had a normal sized head with minimal to no tissue damage (atraumatic). § 87(2)(b) was administered Dextrose 50% in water before being discharged and sent home at 5:35 a.m. that day.

NYPD Documents

EVENT Chronologies

- EVENT report #§ 87(2)(b) (encl. 18A-C) was generated as a result of this incident. At 5:08 p.m. on October 1, 2013, § 87(2)(b) called the police to obtain assistance with the repossession of a car at § 87(2)(b). He reported that the car's owner was at the scene. At 5:10 p.m., § 87(2)(b) also called the police to assist him in dealing with

repo men who were trying to take his car. The job was listed as other crime in progress outside. At 5:11 p.m., patrol sector C-3 of the 73rd Precinct responded to the location, and at 5:34 p.m., the incident was corrected as a non-crime.

- EVENT report #§ 87(2)(b) (encl. 19A-D) was generated as a result of the second incident involving § 87(2)(b) and the repossession team. At 5:42 p.m. on October 1, 2013, § 87(2)(b) called the police again to report that he had processed a vehicle repossession near § 87(2)(b) in Brooklyn but that the owner was refusing to let him take the car. Sector A-3 of the 83rd Precinct responded. At 5:51 p.m., an unidentified male called the police to report a group of males arguing and holding up traffic. At 5:54 p.m., § 87(2)(b) called the police to report that three males were blocking a tow truck and refusing to let them take the car. At 6:00 p.m., § 87(2)(b) called the police to report that one of the repo men was taking his vehicle by pushing it with another vehicle. The operator indicated that it was unknown if the car was being towed or stolen. A sergeant of the 83rd Precinct also responded and at 6:38 p.m., the job was corrected as a non-crime.

Photograph Taken at the Time of the Incident

A photograph (encl. 6E) taken by either § 87(2)(b) or § 87(2)(b) at the time of the incident shows PO Kamna removing § 87(2)(b)'s handcuffs. Standing directly next to them is Sgt. McMullen and PO Shreve.

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b) claiming injuries to his head, neck, and wrist as the result of being removed from his vehicle and then placed into a police vehicle, as well as severe mental and emotional harm, false imprisonment, and malicious prosecution. § 87(2)(b) is seeking ten million dollars as redress (encl. 22A-C).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History

- § 87(2)(b) has filed the following CCRB complaints (encl. 2B):

- § 87(2)(b)

Subject Officer's CCRB History

- PO Kamna has been a member of the service for seven years and there is one substantiated CCRB allegations against him (encl. 2A):
 - In June of 2012, the CCRB substantiated one allegation of a stop against PO Kamna in connection with case #201100274. As a result, the NYPD issued instructions to PO Kamna.

Conclusion

Identification of Subject Officer

§ 87(2)(b) provided the CCRB with a photograph (encl. 6D) of the officer taken at the time of the incident who removed him from his car, placed him into a police car, and made comments to him based on his race. PO Kamna, the officer in the photograph, acknowledged that

he removed § 87(2)(b) from his vehicle, placed him into the police vehicle, and was the primary officer to interact with him. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A—Force: PO Andrew Kamna hit § 87(2)(b) against vehicles.

Allegation B—Offensive Language: PO Andrew Kamna made remarks to § 87(2)(b) based upon race.

In his initial IAB complaint, § 87(2)(b) alleged that PO Kamna called him a “nigger,” stated “black people want to buy things they can’t afford,” and pushed him into a police car, causing him injury as he hit his head on some part of the vehicle. During his sworn statement at the CCRB, he alleged that PO Kamna stated, “I don’t understand why black people buy things they can’t afford,” though he made no mention of any officer ever using the word “nigger.” Further, he alleged in his sworn statement that in addition to hitting his head on the police vehicle, he also hit his head on the doorframe of his own car when PO Kamna removed him from it. § 87(2)(b) stated that immediately following his release from PO Kamna’s car, he returned to the house, sat down for half an hour, and vomited, causing him to go to the hospital late that night where he stated that he was diagnosed with a concussion. Medical records show that he was actually diagnosed with a closed head injury, though all of his neurological, sensory, motor, and coordination functions tested normally and his head was atraumatic.

Although § 87(2)(b) witnessed PO Kamna pull § 87(2)(b) from his car, he made no mention of § 87(2)(b) hitting his head on his vehicle. Additionally, § 87(2)(b) stated that he saw PO Kamna aggressively push § 87(2)(b) into the police car, but did not specifically see him hit his head. Instead, § 87(2)(b) told him that he had hit his head only after the incident. § 87(2)(b) initially made no mention of PO Kamna using any language based on race, but when specifically asked if he did, § 87(2)(b) stuttered and stated that he heard PO Kamna state, “Niggers can’t afford cars they shouldn’t pay for it.” § 87(2)(b) also stated that after the incident, § 87(2)(b) complained to him of neck, wrist, foot, and back pain, though he did not mention having heard of any head pain.

PO Kamna stated that § 87(2)(b) did not hit his head while being removed from his car. § 87(2)(b) and Sgt. Roventini, each of whom who witnessed this process, maintained that they did not see § 87(2)(b) hit his head on his car. PO Kamna similarly stated that § 87(2)(b) did not hit his head while being placed into the police car. § 87(2)(b) and PO Kuo, each of whom witnessed this process, all similarly maintained that § 87(2)(b) did not his head on the police car either. PO Kamna denied ever calling § 87(2)(b) a “nigger” or stating, “I don’t understand why black buy things they can’t afford.” § 87(2)(b) Sgt. Roventini, and Sgt.

McMullen all stated that they never heard PO Kamna make any such statements. Furthermore, § 87(2)(b) and § 87(2)(b) all stated that § 87(2)(b) and § 87(2)(b) cursed and used various racial slurs against both them and the officers, including the terms “nigger” and “spic.”

§ 87(2)(b) and § 87(2)(b) all testified that after the officers left the incident location, located in the 73rd Precinct, § 87(2)(b) and § 87(2)(b) pursued them several blocks into the neighboring 83rd Precinct, where the argument continued and a different set of officers responded. Although he did not initially mention this second incident, § 87(2)(b) acknowledged that it occurred when specifically asked about it. An EVENT Chronology from the 83rd Precinct confirmed that this took place as described.

§ 87(2)(g)

§ 87(2)(b) initially stated that he had video footage of PO Kamna making the statement, but then subsequently reported that there was no audio of the statement and failed to provide the CCRB with that video despite repeated requests to obtain it. Finally, all three civilian witnesses, as well as Sgt. McMullen, who was seen in a photograph standing next to PO Kamna and § 87(2)(b) when the statement was reportedly made, maintained that they did not hear PO Kamna make any such statements. § 87(2)(b) and § 87(2)(b) also stated that it was § 87(2)(b) and § 87(2)(b) who repeatedly used racial slurs, not any officer.

Similarly, although § 87(2)(b) alleged in his CCRB statement that he hit his head on both his own car and the police car, he alleged hitting his head on only the police car in his initial IAB complaint. § 87(2)(b) made no mention of § 87(2)(b) hitting his head on his own car and, although he witnessed him being placed into the police car, did not see § 87(2)(b) hit his head at that point either. None of the civilian witnesses and neither Sgt. Roventini nor PO Kuo saw § 87(2)(b) hit his head on either vehicle. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) An EVENT report confirmed that this occurred, lasting an additional one hour. Finally, medical records showed no evidence of the alleged head injury apart from what § 87(2)(b) reported to hospital personnel himself.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED].

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date